

The Indian Supply Service (Group `A') Rules, 2017

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Union of India - Act

The Indian Supply Service (Group `A') Rules, 2017

UNION OF INDIA

India

The Indian Supply Service (Group `A') Rules, 2017

Rule THE-INDIAN-SUPPLY-SERVICE-GROUP-A-RULES-2017 of 2017

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The Indian Supply Service (Group `A') Rules, 2017

Published vide Notification No. G.S.R.445(E), Dated 8th May, 2017

Ministry of Commerce and Industry

(Department of Commerce)

(Supply Division)

G.S.R.445(E). - In exercise of the powers conferred by the proviso to article 309 of the Constitution and in supersession of the Indian Supply Service (Group `A') Rules, 2012, except as respects things done or omitted to be done before such supersession, the President hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Indian Supply Service (Group `A') Rules, 2017.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Appointing Authority" in relation to any grade means the authority empowered under the Central Civil Services (Classification, Control and Appeal) Rules, 1965, to make appointments to the grade;

(b)

"cadre" means the group of posts in the grades as specified in Schedule - I;

(c)

"Cadre Controlling Authority" means the Government of India in the Ministry of Commerce and Industry, Department of Commerce (Supply Division);

(d)

"Commission" means the Union Public Service Commission;

(e)

"duty post" means any post specified in Schedule - I;

(f)

"grade" means any of the grades specified in Schedule - I;

(g)

"Schedule" means a Schedule to these rules; and

(h)

"Service" means the Indian Supply Service (Group `A').

3.

Constitution.

(1)

The Service shall consist of the posts specified in Schedule-I.

(2)

All the duty posts included in the Service as specified in the aforesaid Schedule shall be classified as Central Civil Service Group `A' posts.

4.

Grade, strength and its review.

(1)

The duty posts included in the various grades, their numbers and level in the pay matrix shall be as specified in Schedule - I.

(2)

Notwithstanding anything contained in sub-rule (1), the Central Government may, by notification in the Official Gazette,-

(a)

make temporary additions, alterations or modifications to the number of duty posts or grades and alter or modify the level in the pay matrix specified in Schedule - I;

(b)

in consultation with the Commission, include in the Service such posts which are deemed to be equivalent in status, grade, level in the pay matrix and professional content to the posts included in the Service; and

(c)

in consultation with the Commission, appoint an officer to a duty post, included in the Service under clause (b), to the appropriate grade on a regular basis and fix his seniority in the grade after taking into account continuous regular service in analogous grade.

5.

Member of the Service.

- All officers appointed to the Service before the commencement of these rules and holding duty posts on regular basis

in Junior Time Scale, Senior Time Scale (Ordinary Grade), Senior Time Scale (Non-Functional Second Grade), Junior Administrative Grade, Senior Administrative Grade and Higher Administrative Grade of the Indian Supply Service as on the date of commencement of these rules shall be members of the Service in the respective grades.

6.

Future maintenance of the Service.

(1)

The vacant duty posts in any of the grades referred to in Schedule - I, shall be filled in the manner specified in Schedule - II.

(2)

(a)

Fifty per cent. of the vacant duty posts in the grade of Junior Time Scale of the Service shall be filled by direct recruitment on the basis of the Combined Engineering Services Examination conducted by the Commission, on the basis of the educational qualifications and age limits prescribed by the Commission for this purpose and

(b)

the remaining fifty per cent. of the vacant duty posts shall be filled by promotion from amongst officers in the feeder grade with minimum qualifying service as specified in Schedule- II.

(3)

All the posts in the Senior Time Scale and above shall be filled by promotion from amongst the officers in the immediate respective lower grade with the minimum qualifying service as specified in Schedule- II.

(4)

The selection of officers for promotion to various grades of the Service shall be regulated in the following manner, namely.-

(a)

promotion to the Junior Time Scale of the Service shall be on the basis of `Selection';

(b)

promotion of officers from the posts in the Junior Time Scale to the posts in the Senior Time Scale (Ordinary Grade) of the Service shall be on the basis of `Selection';

(c)

grant of Non-Functional Second Grade in the Senior Time Scale of the Service shall be in the order of seniority based on the suitability taking into account the overall performance and experience in accordance with guidelines issued by the Central Government from time to time;

(d)

promotion of officers from the Senior Time Scale to the Junior Administrative Grade, from the Junior Administrative Grade to the Senior Administrative Grade and from the Senior Administrative Grade to the Higher Administrative Grade of the service, shall be on the basis of `Selection'.

(5)

The selection of officer in each case under clause (b) of sub-rule (2) and sub-rule (3) shall be on the recommendations of the Departmental Promotion Committee constituted in accordance with Schedule - III.

7.

Filling of duty posts by deputation.

(1)

Notwithstanding anything contained in rule 8, where the Government is of the opinion that it is necessary or expedient to do so, it may for reasons to be recorded in writing and in consultation with the Commission, fill a duty post in any grade by deputation for a period not exceeding three years, which may be in special circumstances be extended upto five years as the Central Government may think fit.

(2)

The qualification, experience and the eligibility service for appointment to any grade of the Service under this rule shall be decided by the Central Government in consultation with the Commission on each occasion.

8.

Seniority.

(1)

The relative seniority of the members of the Service shall be in accordance with the relative seniority in their respective grades as already determined before the commencement of these rules:

Provided that if the seniority of any such member had not been determined before the commencement of these rules, it shall be determined by the cadre controlling authority in accordance with the general orders or instructions on seniority issued by the Central Government from time to time.

(2)

The seniority of persons recruited to the Service after the initial constitution shall be determined in accordance with the general instructions issued by the Central Government in the matter from time to time.

(3)

In cases not covered by sub-rules (1) and (2) seniority shall be determined by the Central Government in consultation with the Commission.

9.

Probation.

(1)

Every officer on appointment to the post in the Junior Time Scale of the service either by direct recruitment or by promotion shall be on probation for a period of two years:

Provided that the Cadre Controlling Authority may extend the period of probation in accordance with the instructions issued by the Central Government from time to time in this behalf:

Provided further that any decision for extension of a probation period shall be taken immediately after the expiry of initial period of probation and ordinarily within eight weeks and communication in writing to the concerned officer together with the reasons for so doing within the said period.

(2)

On completion of the period of probation or any extension thereof, officers shall, if considered fit for permanent appointment, be confirmed in terms of the orders of the Central Government issued from time to time.

(3)

If, during the period of probation, or any extension thereof, as the case may be, the Central Government is of the opinion that an officer is not fit for permanent appointment, Government may discharge the officer or revert him to the post held by him prior to his appointment in the Service, as the case may be.

(4)

During the period of probation or any extension thereof an officer may be required by Government to undergo such courses of training or to pass such examinations or tests (including examination in Hindi) as the Government may deem fit, as condition for satisfactory completion of probation.

(5)

As regards other matters relating to probation, the members of the Service shall be governed by the orders or instructions issued by the Central Government in this regard from time to time.

10.

Appointment to the Service.

- All appointments to the Service shall be made by the Appointing Authority for all the duty posts in various grades of the Service.

11.

Posting.

- Officers appointed to the Service shall be liable to serve anywhere in India.

12.

Liability to serve Defence Services or posts connected with Defence.

- Any officer appointed to the Service, if so required, shall be liable to serve in any Defence Service or post connected with the defence of India, for a period of not less than four years including the period spent on training, if any:

Provided that such officers shall not be required to serve as aforesaid,-

(a)

after the expiry of ten years from the date of his/her appointment to the Service or from the date of his joining the Service;

(b)

if he has attained the age of forty years.

13.

Disqualification.

- No person,-

(a)

who has entered into or contracted a marriage with a person having a spouse living; or

(b)

who, having a spouse living, has entered into or contracted a marriage with any person,

shall be eligible for appointment to the Service:

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of this rule.

14.

Other conditions of the Service.

- The conditions of service of members of the Service in respect of matters for which no specific provision has been made in these rules, shall be the same as are applicable, from time to time, to officers of equivalent rank of the Central Government.

15.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient to do so, it may, by order, for reasons to be recorded in writing and in consultation with the Commission, relax any of the provisions of these rules with respect to any class or category of persons.

16.

Saving.

- Nothing in these rules shall affect reservation, relaxation in age limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes, Ex-Servicemen and other special categories of persons in accordance with the orders issued by the Government from time to time in this regard.

17.

Interpretation.

- If any question arises relating to the interpretation of these rules, it shall be decided by the Central Government in consultation with the Commission.

I

(See rules 3, 4 and 6)

The duty posts, various grades specified in column (2) of the table below, having number of posts as specified in corresponding column (3) thereof, and the level in pay matrix as specified in corresponding column (4) of the said table shall be included in the Service, namely:-

Sl. No.

Name of the grade or post

Number of posts

Level in the pay matrix

(1)

(2)

(3)

(4)

1.

Higher Administrative Grade(Additional Director General).

2* (2017)

Level 15 in the pay matrix Rs. 1,82,200 - 2,24,100.

2.

Senior Administrative Grade(Deputy Director General).

11* (2017)

Level 14 in the pay matrix Rs. 1,44,200 - 2,18,200.

3.

Junior Administrative Grade(Director).

24* (2017)

Level 13 in the pay matrix Rs. 1,18,500 - 2,14,100.

4.

Senior Time Scale Non-Functional Second Grade (Deputy Director).

The Senior Time Scale Non-Functional Second Grade is a grade, the maximum number of posts in which grade shall be equal to thirty per cent of the Senior duty Posts (i.e. all Duty Posts at the level of Senior Time Scale and above in the service) and the maximum number of posts in the Non-Functional Second Grade will be limited to the number of posts sanctioned in the Senior Time Scale.

Level 12 in the pay matrix Rs. 78,800 - 2,09,200.

5.

Senior Time Scale(Ordinary Grade)(Deputy Director).

34* (2017)(Includes Non-Functional Second

Grade posts in level 12 in the pay matrix (Rs. 78,800 - 2,09,200).

Level 11 in the pay matrix Rs. 67,700 - 2,08,700.

6.

Junior Time Scale[Assistant Director (Grade I)].

33* (2017)

Level 10 in the pay matrix Rs. 56,100 - 1,77,500.

Reserve- NIL

*subject to variation dependent on work load

II

(See rule 6)

Method of recruitment, field of promotion and minimum qualifying service in the immediate lower grade for appointment of officers on promotion to duty posts included in the various grades of the Service.

Sl. No.

Grade (Duty Post)

Method of Recruitent

Field of selection and minimum qualifying service for promotion

(1)

(2)

(3)

(4)

1.

Higher Administrative Grade (Additional Director General).

Promotion.

Officers in the Senior Administrative Grade with three years regular service in the grade or officers with twenty-five years regular Service in Group `A' posts in the service out of which one year regular service shall be in the Senior Administrative Grade.

2.

Senior Administrative Grade (Deputy Director General).

Promotion.

Officers in the Junior Administrative Grade with three years regular service in the grade or officers with seventeen years' regular service in Group `A' posts in the service out of which one year regular service shall be in Junior Administrative Grade.

3.

Junior Administrative Grade (Director).

Promotion.

Officers in the Senior Time Scale of the Service with nine years regular service in the grade, including regular service, if any, rendered in the Non-Functional Second Grade in the Senior Time Scale or officers with thirteen years of regular service in Group `A' of the Service and regular service of four years in the Senior Time Scale including the service, if any, rendered in the Non-Functional Second Grade of the Senior Time Scale.

4.

Senior Time Scale Non-Functional Second Grade (Deputy Director).

Appointment on the basis of seniority based on suitability taking into account the overall performance and experience.

Officers of the Senior Time Scale of the Service in level 11 in the pay matrix with five years regular service in the grade.

5.

Senior Time Scale (Ordinary Grade) (Deputy Director).

Promotion.

Officers in the Junior Time Scale of the service with four years of regular service in the grade, possessing educational qualifications specified for direct recruits into Junior Time Scale of the service.

6.

Junior Time Scale [Assistant Director (Grade I)].

Fifty per cent. by promotion and Fifty per cent. by direct recruitment through Engineering Services Examination.

Assistant Director of Supplies (Grade II) with three years regular service in the grade.

Note: - Where juniors who have completed their qualifying or eligibility service are being considered for promotion, their seniors would also be considered provided they are not short of the requisite qualifying or eligibility service by more than half of such qualifying or eligibility service, or two years, whichever is less, and have successfully completed their probation period for promotion to the next higher grade along with their juniors who have already completed such qualifying or eligibility service.

III

(See sub-rule (5) of rule 6)

Composition of Group `A' Departmental Promotion Committee and Departmental Confirmation Committee for

considering cases of promotion or confirmation, as the case may be, in Group `A' posts included in Indian Supply Service.

S. No.

Grade

Group `A' Departmental Promotion Committee

(for considering promotion) consisting of:-

Group `A' Departmental Confirmation Committee

(for considering confirmation) consisting of:-

(1)

(2)

(3)

(4)

1.

Higher Administrative Grade (Additional Director General).

1. Chairman or Member, Union Public Service Commission ?

Chairman 2. Secretary, Department of Commerce ?

Member 3. Secretary, Ministry of Urban Development - Member.

Not applicable.

2.

Senior Administrative Grade (Deputy Director General).

1. Chairman or Member, Union Public Service Commission ?

Chairman 2. Secretary, Department of Commerce ?

Member 3. Director General (Supplies and Disposals),

Directorate General of Supplies and Disposals - Member.

Not applicable.

3.

Junior Administrative Grade (Director).

1. Chairman or Member, Union Public Service Commission ?

Chairman 2. Secretary, Department of Commerce ?

Member 3. Deputy Director General, Directorate General of
Supplies and Disposals - Member.

Not applicable.

4.

Senior Time Scale Non-Functional Second Grade (Deputy
Director).

1. Secretary or Additional Secretary, Department of Commerce ?

Chairman 2. Additional Director General, Directorate General

of Supplies and Disposals ? Member 3. Joint Secretary

(Commerce) ? Member 4. Joint Secretary, Ministry of

Steel - Member.

Not applicable.

5.

Senior Time Scale (Ordinary Grade) (Deputy Director).

1. Joint Secretary (Commerce) ? Chairman 2. Deputy

Director General, Directorate General of Supplies and Disposals ?

Member 3. Director or Deputy Secretary (Commerce) - Member.

Not applicable.

6.

Junior Time Scale [Assistant Director (Grade I)].

1. Chairman or Member, Union Public Service Commission ?

Chairman 2. Secretary, Department of Commerce ?

Member.3. Director General (Supplies and Disposals),
Directorate General of Supplies and Disposals - Member.
1. Director General (Supplies and Disposals) or Additional
Director General, Directorate General of Supplies and Disposals.
- Chairman2. Director (Admin.), Directorate General of
Supplies and Disposals - Member.3. Deputy Secretary
(Commerce) - Member.

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